

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mercedes Bayon	Team: Team # 4	CCRB Case #: 201308596	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 08/08/2013 12:50 AM	Location of Incident: § 87(2)(b) and § 87(2)(b)	Precinct: 81	18 Mo. SOL 2/8/2015	EO SOL 2/8/2015	
Date/Time CV Reported Mon, 09/16/2013 10:38 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/16/2013 10:38 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Roman Goris	14772	947042	PBBN SU
2. SGT Kwame Kipp	03146	930490	PBBN SU
3. POF Salwa Jwayyed	26007	941981	PBBN SU

Officer(s)	Allegation	Investigator Recommendation
A.POM Roman Goris	Abuse: PO Roman Goris searched § 87(2)(b)	§ 87(2)(b)
B.POM Roman Goris	Abuse: PO Roman Goris searched the car in which § 87(2)(b) was an occupant.	§ 87(2)(b)
C.POM Roman Goris	Abuse: PO Roman Goris strip-searched § 87(2)(b)	§ 87(2)(b)
D.SGT Kwame Kipp	Abuse: Sgt. Kwame Kipp frisked § 87(2)(b)	§ 87(2)(b)
E.SGT Kwame Kipp	Abuse: Sgt. Kwame Kipp searched § 87(2)(b)	§ 87(2)(b)
F.SGT Kwame Kipp	Abuse: Sgt. Kwame Kipp strip-searched § 87(2)(b)	§ 87(2)(b)
G.SGT Kwame Kipp	Abuse: Sgt. Kwame Kipp searched the car in which § 87(2)(b) was an occupant.	§ 87(2)(b)
H.POM Roman Goris	Discourtesy: PO Roman Goris spoke discourteously to § 87(2)(b)	§ 87(2)(b)
I.POF Salwa Jwayyed	Abuse: PO Salwa Jwayyed searched the car in which § 87(2)(b) was an occupant.	§ 87(2)(b)
J.POM Roman Goris	Force: PO Roman Goris used physical force against § 87(2)(b)	§ 87(2)(b)
K.SGT Kwame Kipp	Discourtesy: Sgt. Kwame Kipp spoke discourteously to § 87(2)(b)	§ 87(2)(b)

Case Summary

On September 16, 2013, § 87(2)(b) filed this complaint with the CCRB on behalf of her son, § 87(2)(b) via the telephone. § 87(2)(b) was not a witness to this incident (encl. 8-9).

On August 8, 2013, at approximately 12:50am, in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, § 87(2)(b) was arrested by PO Roman Goris, Sgt. Kwame Kipp, and PO Salwa Jwayyed, of Patrol Borough Brooklyn North Street Unit. The following allegations resulted:

- **Allegation A: Abuse of Authority-** PO Roman Goris searched § 87(2)(b)
- **Allegation B: Abuse of Authority-** PO Roman Goris searched the car in which § 87(2)(b) was an occupant.
- **Allegation C: Abuse of Authority-** PO Roman Goris strip-searched § 87(2)(b)
- **Allegation D: Abuse of Authority:** Sgt. Kwame Kipp frisked § 87(2)(b)
- **Allegation E: Abuse of Authority-** Sgt. Kwame Kipp searched § 87(2)(b)
- **Allegation F: Abuse of Authority-** Sgt. Kwame Kipp strip-searched § 87(2)(b)
- **Allegation G: Abuse of Authority-** Sgt. Kwame Kipp searched the car in which § 87(2)(b) was an occupant.
- **Allegation H: Discourtesy-** PO Roman Goris spoke discourteously to § 87(2)(b)
- **Allegation I: Abuse of Authority-** PO Salwa Jwayyed searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

- **Allegation J: Force-** PO Roman Goris used physical force against § 87(2)(b)

§ 87(2)(g)

- **Allegation K: Discourtesy-** Sgt. Kwame Kipp spoke discourteously to § 87(2)(b)

§ 87(2)(g)

This case was reassigned to Investigator Mercedes Bayon on November 29, 2013 upon Investigator Amgad Fawzy's departure from the agency.

Results of Investigation

Civilian Statement(s)

Victim: § 87(2)(b)

- On August 8, 2013, § 87(2)(b) was § 87(2)(b). He is a black male who stands 6'0" tall and weighs 160 pounds with black braided hair and brown eyes. He did not disclose information about his employment.

Arrest Photograph: (encl. 15)

§ 87(2)(b) was wearing a strap around his neck indicative of having a sling around his left arm.

Statement to § 87(2)(b) Medical Personnel:

§ 87(2)(b) complained of pain to his right shoulder and right arm. He informed medical personnel that he sustained an injury while being arrested.

CCRB Interview: (encl. 10-16)

On January 28, 2014, § 87(2)(b) was interviewed in person at § 87(2)(b) located on Rikers Island. Between 11:30pm on August 7, 2013 and 12:00am on August 8, 2013, § 87(2)(b) was driving his girlfriend, § 87(2)(b) § 87(2)(b)s, vehicle. He did not consume any liquor or narcotics and there was no liquor or narcotics in the vehicle or on his person. He left his brother's house and drove to § 87(2)(b) and § 87(2)(b) which is where § 87(2)(b) resides. § 87(2)(b) planned on picking up § 87(2)(b) to go pick up her stepfather and then return home. § 87(2)(b) drove to the front of § 87(2)(b)s home and was parked outside for approximately 2 minutes waiting for § 87(2)(b) to come downstairs. As soon as § 87(2)(b) exited her home, she got into the front passenger seat of the vehicle.

§ 87(2)(b) drove straight down § 87(2)(b) towards § 87(2)(b). There is a traffic light at the intersection of § 87(2)(b) and § 87(2)(b) and upon approach the light was red. When the light turned green, § 87(2)(b) made a left turn. § 87(2)(b) drove on § 87(2)(b) one block to § 87(2)(b) and made a left. There is no traffic light at this intersection and no stop sign for the direction of traffic he was traveling. § 87(2)(b) drove down § 87(2)(b) to § 87(2)(b). There was a red traffic light at this location, which § 87(2)(b) was waiting for to turn green. As § 87(2)(b) was waiting for the traffic light to turn green, a gray unmarked four door vehicle pulled up next to him. The unmarked vehicle had a female operator. § 87(2)(b) described the operator as a white female who was in her 30's approximately 5'9"-5'10" tall and 150-170 pounds wearing jeans and a long sleeve shirt, identified by the CCRB as PO Salwa Jwayyed.

PO Jwayyed was looking at § 87(2)(b) and verbalized something, but § 87(2)(b) could not hear her. § 87(2)(b) looked at PO Jwayyed who then repeated for § 87(2)(b) to pull over and said NYPD while she simultaneously made a siren sound with the vehicle and flashed the lights, which § 87(2)(b) associated with the police. § 87(2)(b) pulled over at § 87(2)(b) and § 87(2)(b) § 87(2)(b) stated that PO Jwayyed approached the front passenger side where § 87(2)(b) was seated while three male officers approached on the driver's side. The CCRB determined that there were only three officers involved in the vehicle stop, PO Roman Goris, PO Jwayyed, and Sgt. Kwame Kipp and that PO Jwayyed approached the driver's side while PO Goris approached the passenger side. § 87(2)(b) described PO2 and PO4 with similar physical descriptions. He described PO2 as a white male who was approximately 6'0" tall and 180 pounds with a mustache in his mid 30's and PO4 as a white male who was approximately 5'9"-5'10" tall and weighed about 180-190 pounds with a slight mustache, both dressed in plainclothes. PO Goris was the only white male on the scene, thus the CCRB determined that PO2 and PO4 are PO Goris. § 87(2)(b) described PO3 as a dark skinned black male about 5'6"-5'7" tall and 155-160 pounds in his mid 30's with a goatee who was wearing a hat and red/black Falcons football jersey, identified by the CCRB as Sgt. Kwame Kipp.

§ 87(2)(b) stated that PO Goris asked for his license and registration. § 87(2)(b) reached for his license and provided it to the officers. § 87(2)(b) opened the glove compartment and began looking for the registration. During this time § 87(2)(b) was informed that he was being pulled over for driving through a red light, which § 87(2)(b) refuted. According to § 87(2)(b) PO Goris grew impatient waiting for § 87(2)(b) to find the registration at which time he pulled the handle on the driver's side door, pulled it open, and verbally directed § 87(2)(b) to exit the vehicle. § 87(2)(b) then got out of the vehicle on his own and stood with his back

against the back passenger door. § 87(2)(b) noticed that § 87(2)(b) was also standing outside of the vehicle on the passenger side. Sgt. Kipp stated that they were only concerned with guns and § 87(2)(b) replied “Oh guns? Aight, then search” because he had nothing to hide. § 87(2)(b) later testified that PO Goris mentioned searching his person and he said ok. He also testified that the officers mentioned searching his vehicle to which he consented.

§ 87(2)(b) then testified that he was the one who brought up searching his person and the vehicle giving the officer permission, but he then retracted this stating that there was no conversation about searching him or the vehicle and that he never consented to any search. § 87(2)(b) specifically stated that no officer asked to search him and that no officer asked to search his vehicle. He stated that when he exited his vehicle, PO Goris immediately began searching him by going into his pants pockets and then went straight for the car and began searching it. He observed PO Goris go into the driver’s side, but did not see where he looked. § 87(2)(b) informed the investigator that he would have never consented to a search. PO Goris came out of the driver’s side and asked § 87(2)(b) if he was drinking, which § 87(2)(b) denied. He was never offered or given a breathalyzer test at any time during this incident. PO Goris again searched § 87(2)(b) PO Goris patted § 87(2)(b) down over his clothes from his shoulders down to his legs and then back up again. When PO Goris got to § 87(2)(b)’s waistband area, PO Goris went into § 87(2)(b)’s pants between his pants and his undergarments making contact with his genitals outside of his undergarments, which caused § 87(2)(b) to push himself back against the vehicle. § 87(2)(b) also pushed PO Goris’ hands away from him. PO Goris told him to stay still. When § 87(2)(b) pushed PO Goris’ hand away § 87(2)(b) said, “That’s not a search.” In response to this, PO Goris grabbed § 87(2)(b) by his arms and turned him to face the vehicle.

PO Goris again entered the vehicle from the driver’s side door, which was open. PO Goris was half in the vehicle and half out of the vehicle. § 87(2)(b) did not see what areas PO Goris specifically searched or what PO Goris did when he was inside of the vehicle. During this time, Sgt. Kipp patted § 87(2)(b) up and down from behind going into his pockets and then when he approached § 87(2)(b)’s waistband, Sgt. Kipp put his hands down § 87(2)(b)’s pants making contact with his buttocks from underneath his undergarments. When § 87(2)(b) felt this, he jumped around and turned to face Sgt. Kipp and stated that he was improperly searching him. § 87(2)(b) stated that when he turned around he stated, “Yo what the fuck is going on.” Sgt. Kipp then called § 87(2)(b) a tough guy. PO Goris and Sgt. Kipp grabbed § 87(2)(b) by his arms and walked him to the back of his vehicle. § 87(2)(b) stood at the back of his vehicle facing away from his vehicle towards the unmarked police vehicle that was parked directly behind his vehicle. At some point § 87(2)(b) turned to face his vehicle and observed PO Goris and Sgt. Kipp searching his vehicle. § 87(2)(b) observed that his trunk was open and that PO Goris and Sgt. Kipp were moving things around and searching inside of the trunk.

When they closed the trunk, § 87(2)(b) began making statements towards the officers. He told them, “Yeah y’all mad you ain’t find nothing.” § 87(2)(b) stated that he knew he was not doing anything wrong so he was “talking junk,” which caused PO Goris to get mad. § 87(2)(b) stated that he made other statements including, “You fucking detectives” and “You ain’t got nothing better to do.” When PO Goris became upset, PO Goris began stating “Oh you’s a tough guy. You’s a fucking tough guy.” During this time, § 87(2)(b) told § 87(2)(b) to be quiet, but he did not remain quiet. He continued to make statements such as “No that’s alright. They out here keep messing with people that’s what they get.” At some point PO Jwayyed and PO Goris spoke and PO Jwayyed then searched the vehicle from the front passenger side, but § 87(2)(b) did not see where she specifically searched. PO Goris then told him not to look at him and § 87(2)(b) replied, “What you mean don’t look at you? That’s my eyes.” PO Goris then approached him with Sgt. Kipp, grabbed him, and threw him face first against the back of his vehicle. He did

not allege any injuries and stated that he was pressed against the vehicle with his face and hands against it.

Once § 87(2)(b) was against the vehicle, Sgt. Kipp grabbed his right arm to pull it behind his back and restrain § 87(2)(b). § 87(2)(b) began screaming, “What are you doing? What are you doing?” while simultaneously trying to pull away from Sgt. Kipp’s grip. Sgt. Kipp had a hold of § 87(2)(b)’s wrist pushing it up so that § 87(2)(b) would stop moving, but § 87(2)(b) did not stop moving and was admittedly resisting. PO Goris had a hold of § 87(2)(b)’s left arm and was pulling it behind § 87(2)(b)’s back and lifting his arm up from behind in a manner which was causing § 87(2)(b) pain. § 87(2)(b) continued to be combative, trying to pull away and Sgt. Kipp told him to, “Stop fucking moving. Stop fucking moving.” § 87(2)(b) explained that PO Goris had his arm behind his back to handcuff him, but lifted his arms high up behind his back which caused him great pain and ended up causing § 87(2)(b)’s left arm to break. He explained that his left arm broke between his shoulder and elbow. Following this they handcuffed him. He did not know who placed the handcuffs on him or whose handcuffs were used. PO Goris told § 87(2)(b) “You’re going to jail. You fucked up tonight.” § 87(2)(b) said, “Fuck everything else. Y’all broke my arm.” In response, Sgt. Kipp said, “Na fuck that. We ain’t listening to that. You ain’t no tough guy now.”

At some point during this interaction, a crowd of approximately 10 people had gathered and PO Goris was telling the crowd to step back from the scene. After § 87(2)(b) was handcuffed, he was placed inside of the unmarked vehicle. § 87(2)(b) was let go and she returned to her home.

Once at the stationhouse, PO Jwayyed began saying that they found crack on § 87(2)(b) which § 87(2)(b) refuted. There was an officer standing behind the front desk who was in uniform with a white shirt and § 87(2)(b) believed he was a captain. § 87(2)(b) began stating that he did not have any drugs on his person and that the officers planted the drugs on him. § 87(2)(b) also complained that his arm was “killing him” and that his arm was “hurt.” § 87(2)(b) was taken to § 87(2)(b). While § 87(2)(b) was at § 87(2)(b), Internal Affairs arrived. § 87(2)(b) spoke with IAB officers and informed them of what had happened. Following this, § 87(2)(b) was seen by a doctor and his left arm was placed in a cast. He was then taken to the 81st Precinct stationhouse where he was informed that he was being charged with § 87(2)(b). § 87(2)(b) stated that he was never given a breathalyzer test by police or medical personnel and he was never given any summons for disobeying a red light. He was then taken to Central Booking.

Attempts to Contact Civilians (encl. 54-57)

Between February 3, 2014 and March 26, 2014, the undersigned investigator mailed § 87(2)(b) three please call letters and called her four times, but there was no answer and no voicemail engaged. On April 5, 2014, the undersigned investigator called § 87(2)(b) and left her a voicemail on her voicemail system. None of the letters have been returned to the CCRB. Based on a search of the Department of Correction Inmate Look-Up Website, § 87(2)(b) was not incarcerated. To date, § 87(2)(b) has not contacted the CCRB.

NYPD Statement(s):

Subject Officer: PO ROMAN GORIS

- *At the time of the incident, PO Goris was § 87(2)(b) old. PO Goris is a white male who stands 5’11” tall and weighs 250 pounds with black hair and brown eyes. PO Goris had a slight mustache at the time of his interview.*

- On the date of the incident, PO Goris worked with Sgt. Kipp and PO Jwayyed. He was in plainclothes assigned to an unmarked police vehicle. He worked from 5:30pm until 2:05am assigned to Brooklyn North Anti-Crime.

Complaint Report and Arrest Report: (encl. 17-21)

PO Goris prepared a complaint report and an arrest report for this incident with consistent narratives. The reports noted as follows: “At the time and place of occurrence, § 87(2)(b) was observed going through a steady red light. Upon being stopped, the arresting officer observed § 87(2)(b) behind the wheel of a vehicle with the key in the ignition. § 87(2)(b) had watery eyes and the smell of alcohol on his breath. § 87(2)(b) resisted arrest by flailing his arms and refusing to be handcuffed. A search incident to lawful arrest produced crack cocaine.” § 87(2)(b) was charged with § 87(2)(b)

§ 87(2)(b) s arrest report noted that physical force was used to restrain, control, and remove § 87(2)(b)

Memo Book: (encl. 22-25)

PO Goris’ memo book stated that at 12:50am, there was a vehicle stopped at § 87(2)(b) and § 87(2)(b) for taking a steady red light on § 87(2)(b) and § 87(2)(b). At 1:00am, § 87(2)(b) was under arrest for § 87(2)(b). At 1:20am, a quantity of crack cocaine was recovered from § 87(2)(b)’s underpants. At 2:00am, § 87(2)(b) refused to take an alcohol test and at § 87(2)(b) he was removed to § 87(2)(b).

CCRB Statement: (encl. 26-28)

On April 24, 2014, PO Goris was interviewed at the CCRB. On August 8, 2013, at approximately 12:50am, PO Goris was in an unmarked police vehicle with Sgt. Kipp and PO Jwayyed. PO Goris did not recall who the operator was and did not recall where he was seated in the vehicle. As they were driving in the vicinity of § 87(2)(b) and § 87(2)(b) they observed a vehicle proceed through a steady red light. PO Goris and his partners decided to stop the vehicle with the purpose of issuing him a VTL summons. They conducted the vehicle stop by turning on their lights and siren.

Upon stopping the vehicle, PO Goris approached the passenger side while PO Jwayyed and Sgt. Kipp approached the driver’s side. When PO Goris reached the passenger side, he observed a female front passenger, identified by the CCRB as § 87(2)(b) who lowered the front window. Following this, PO Goris smelled a strong scent of alcohol. PO Goris looked at the driver, § 87(2)(b) from the passenger side, and observed that he had red and watery eyes that were half way shut and incoherent speech. § 87(2)(b) was looking from side to side from the driver’s side to the passenger side. It was when § 87(2)(b) looked towards the passenger side that PO Goris was able to see § 87(2)(b)’s eyes. § 87(2)(b) was also making statements, but PO Goris did not understand what he was saying.

PO Goris remained on the passenger side of the vehicle. He did not recall if both Sgt. Kipp and PO Jwayyed were speaking to or interacting with § 87(2)(b) or if one of them was specifically speaking to him. PO Goris and § 87(2)(b) began having a conversation; however, he did not recall the specific details of the conversation. He did not recall if he ever asked her for any documentation and never observed her look through any compartments of the vehicle or retrieve any documents. § 87(2)(b) told PO Goris, “I asked him to let me drive. He won’t let me drive,” in reference to § 87(2)(b). PO Goris testified that he did not pay attention to what was occurring on the driver’s side of the vehicle with his partners and § 87(2)(b). PO Goris did not hear his partners request any documentation from § 87(2)(b) or hear any part of their

conversation. He never heard any officer tell § 87(2)(b) to shut his vehicle off and did not observe § 87(2)(b) remove the keys from the ignition or place them into the cup holder. He did not recall seeing § 87(2)(b) reach into any compartments in the vehicle or obtain any documentation.

At some point, PO Goris observed that § 87(2)(b) began stepping out of the vehicle and as § 87(2)(b) did this, PO Goris saw him throw something under the front driver's side seat. PO Goris did not see if any officer ever opened § 87(2)(b)'s driver's side door as he stepped out of the vehicle. PO Goris did not recall how much time elapsed from when the vehicle was stopped to when § 87(2)(b) stepped out of the vehicle. PO Goris did not know why § 87(2)(b) stepped out of the vehicle. PO Goris explained that § 87(2)(b) kept directing her attention to what was occurring with § 87(2)(b) but PO Goris continued to speak to her to try and keep her attention away from what was occurring on the driver's side. PO Goris did not recall what he was saying to her during this time.

At some point after § 87(2)(b) stepped out of the vehicle, he was handcuffed. PO Goris did not see him being handcuffed and did not witness any struggle to handcuff him. He did not see any force being used against § 87(2)(b) nor did he ever hear § 87(2)(b) scream about any injury or pain. He did not see any officer lift § 87(2)(b)'s arms behind him or use any force against § 87(2)(b) which would cause injury to § 87(2)(b). PO Goris did not have any involvement in handcuffing § 87(2)(b). PO Goris did not recall if § 87(2)(b) was immediately handcuffed upon stepping out of the vehicle or if some time elapsed. As the investigator continued to ask for details regarding this, PO Goris explained that his attention was solely on § 87(2)(b).

At some point after § 87(2)(b) was handcuffed, PO Goris walked around to the driver's side of the vehicle. PO Goris did not recall if he had any conversation with § 87(2)(b) when he approached the driver's side of the vehicle. PO Goris walked directly to the driver's side door and retrieved a clear plastic Poland Spring bottle from where he observed § 87(2)(b) throw an object. The clear plastic Poland Spring bottle contained alcohol. PO Goris did not recall searching any other area of the vehicle and he did not observe any officer do so. PO Goris was never instructed by any officer to retrieve the object, he decided to do so based on his own observation. When PO Goris was retrieving the object, § 87(2)(b) was already being walked back to their police vehicle. PO Goris did not recall who walked § 87(2)(b) to the vehicle. PO Goris did not see any officer search § 87(2)(b)'s vehicle or breach the plane of the vehicle.

PO Goris did not see any officer search or frisk § 87(2)(b) and he did not search or frisk § 87(2)(b) while on the scene of arrest. He did not see any officer reach inside of § 87(2)(b)'s pants making contact with § 87(2)(b)'s undergarments or privates and he did not do so himself. § 87(2)(b)'s undergarments and privates were never exposed. PO Goris stated that although he did not witness a search of § 87(2)(b) occur at any time while at the scene of arrest, it is departmental procedure to conduct a search of a person under arrest prior to placing them into the police vehicle. PO Goris denied that there was any conversation with § 87(2)(b) about firearms. He did not recall if he ever told either § 87(2)(b) or § 87(2)(b) the reason why they were stopped. He did not hear any officers explain to § 87(2)(b) the purpose for the vehicle stop. PO Goris denied that § 87(2)(b) was ever pushed or thrown against any vehicle. He did not use any force against § 87(2)(b) and never observed any officer use force against him. He denied that he or any officer used any profanity during the incident. He denied that he or any officer ever stated, "Oh you's a tough guy. You's a fucking tough guy," "Stop fucking moving. Stop fucking moving," "Na fuck that. We ain't listening to that. You ain't no tough guy now," or "You're going to jail. You fucked up tonight."

After the item was retrieved and § 87(2)(b) was inside of the police vehicle, they drove back to the stationhouse. § 87(2)(b) was free to leave and § 87(2)(b)'s vehicle was taken back to

the stationhouse. He did not recall who drove the vehicle back to the stationhouse. He did not remember if he drove the vehicle or one of his partners. At the stationhouse, § 87(2)(b) was searched in front of the desk before being placed in the holding cells. PO Goris conducted this search. He described that he patted § 87(2)(b) down and felt a bulge near § 87(2)(b)'s underwear. PO Goris reached for where the bulge was felt and removed a quantity of crack cocaine. He did not make contact with § 87(2)(b)'s skin or any private parts. No part of § 87(2)(b)'s body was exposed.

Following this, § 87(2)(b) complained that he had pain to his arm. PO Goris did not recall what the injury was and did not know how § 87(2)(b) sustained this injury. He did not know if this was a pre-existing injury or an injury that occurred during his arrest. PO Goris explained that he called for an ambulance and § 87(2)(b) was transported to the hospital. PO Goris did not go to the hospital.

Subject Officer: SGT KWAME KIPP

- *At the time of the incident, Sgt. Kipp was § 87(2)(b) old. He is a black male who stands 5'10" tall and weighs 185 pounds with black hair and brown eyes.*
- *Sgt. Kipp is assigned to Patrol Borough Brooklyn North Anti-Crime. On the date of this incident, he was working within the confines of the 81st Precinct. Sgt. Kipp's assignment was anti-crime supervisor. He worked with PO Jwayyed and PO Goris*

Memo Book: (encl. 29-31)

Sgt. Kipp's memo book entries state that at 1:00am, PO Goris had one individual, § 87(2)(b) under arrest for § 87(2)(b) and that crack cocaine was found on § 87(2)(b) during a search incident to lawful arrest. His memo book noted that § 87(2)(b) resisted arrest at § 87(2)(b) and § 87(2)(b) and he was removed to the 78th Precinct for IDTU analysis. At 4:00am, Sgt. Kipp noted that § 87(2)(b) had a fractured arm and that he notified the duty captain about the injury.

CCRB Statement: (encl. 32-34)

Sgt. Kipp was interviewed at the CCRB on May 22, 2014. § 87(2)(g)

According to Sgt. Kipp, once they stopped the vehicle, Sgt. Kipp and his partners exited. Sgt. Kipp remained near the back of the stopped vehicle. Sgt. Kipp's operator approached on the driver's side and the passenger approached on the front passenger side of the stopped vehicle. Sgt. Kipp could not specify, by identity, which officer approached on the driver's side or passenger side. From Sgt. Kipp's vantage point, he observed that there were two occupants, § 87(2)(b) the driver, and a female front passenger, identified by the CCRB as § 87(2)(b). However, from where he was standing he did not hear any conversation between the officers and the occupants of the stopped vehicle. He explained that he stood at the back of the vehicle to "observe" what was going on. Sgt. Kipp never heard § 87(2)(b) being asked for documentation and never observed § 87(2)(b) hand over any documentation. He did not recall observing either § 87(2)(b) or § 87(2)(b) making any movements in the vehicle. Sgt. Kipp stated that as he was standing at the back of his vehicle, one of his partners observed § 87(2)(b) with a cup while the other officer observed that § 87(2)(b) smelled of alcohol, had bloodshot eyes, and was also slurring his speech. Sgt. Kipp did not recall which of his partners made the above mentioned observations. He did not recall who was specifically interacting with § 87(2)(b).

Subsequent to the observation, § 87(2)(b) was asked to step out of his vehicle and he complied. Sgt. Kipp did not recall who asked § 87(2)(b) to step out of his vehicle. When § 87(2)(b) stepped out of his vehicle, Sgt. Kipp approached the driver's side. Sgt. Kipp did not recall

if § 87(2)(b) had to be asked to step out numerous times. Sgt. Kipp only approached once § 87(2)(b) physically stepped out. § 87(2)(b) was subsequently told that he was going to be placed under arrest for § 87(2)(b) but Sgt. Kipp did not recall who the officer was interacting with § 87(2)(b) thus did not recall who informed § 87(2)(b) that he was going to be placed under arrest. Sgt. Kipp did not recall having any conversation with § 87(2)(b) when he approached the driver's side. After § 87(2)(b) was told that he was going to be placed under arrest, § 87(2)(b) began to flail his arms. At this point, the third officer who was originally interacting with § 87(2)(b) approached the driver's side. Sgt. Kipp did not recall who was the first officer to attempt to make physical contact with § 87(2)(b) to effect his arrest. He did not recall who took out their handcuffs to handcuff § 87(2)(b).

Sgt. Kipp explained that he grabbed one of § 87(2)(b)'s arms because § 87(2)(b) was flailing his arms. Sgt. Kipp did not recall if he grabbed § 87(2)(b)'s left or right arm. Sgt. Kipp grabbed his arm to stop him from swinging his arms. He did not recall if any other officer grabbed § 87(2)(b)'s other arm. Sgt. Kipp explained that he grabbed § 87(2)(b)'s arm and held it still so that § 87(2)(b) could be handcuffed. He denied pushing, twisting, or bending § 87(2)(b)'s arm in any manner that caused any pain to § 87(2)(b) or any injury. He did not observe any officer do this either. § 87(2)(b) never screamed out in pain or made any statements about experiencing pain during his arrest. Sgt. Kipp and the officers were solely attempting to get § 87(2)(b)'s arms behind him to handcuff him. During the time they were trying to handcuff § 87(2)(b) § 87(2)(b) was also cursing and being belligerent. Sgt. Kipp did not recall what § 87(2)(b) was specifically saying.

At some point, while trying to effect § 87(2)(b)'s arrest, Sgt. Kipp, § 87(2)(b) and the officers fell to the ground. He could not describe exactly how this happened except for stating that they all tripped during the struggle to handcuff § 87(2)(b). He denied that § 87(2)(b) was thrown against his vehicle or against the ground. Sgt. Kipp did not recall how he, § 87(2)(b) or any of the officers landed on the ground. However, after falling to the ground they were able to get § 87(2)(b)'s hands behind his back and handcuff him. § 87(2)(b) was then lifted from the ground and placed inside of the police vehicle. He denied that he or any officer lifted, twisted, or bent § 87(2)(b)'s arms in any way. § 87(2)(b) was then removed to the 78th Precinct for IDTU analysis. Sgt. Kipp stated that immediately after § 87(2)(b) stepped out of the vehicle, he was placed under arrest. Neither he nor any officer searched § 87(2)(b) at this time and he did not recall any conversation regarding a search. Neither he nor any officer made contact with § 87(2)(b)'s private parts or went into his pants or underwear. The only time § 87(2)(b) was searched at the scene of arrest was after § 87(2)(b) was in handcuffs and prior to him being placed inside of the police vehicle. Sgt. Kipp stated that § 87(2)(b) was also searched at the front desk before being lodged in the holding cell. Sgt. Kipp did not recall who conducted these searches. He did not recall who recovered the crack cocaine or whether it was recovered in the field or at the stationhouse.

Sgt. Kipp did not direct any officer to search § 87(2)(b)'s vehicle nor did he search the vehicle. Sgt. Kipp did not observe any officer search the vehicle. However, § 87(2)(b)'s vehicle was driven back to the stationhouse by an officer, who he could not identify. Sgt. Kipp stated that when a vehicle is taken back to the stationhouse an inventory search is conducted, but he did not see this occur. He was not sure when the cup § 87(2)(b) was observed with was verified to contain alcohol. He did not see the cup or know the color of the liquid inside of the cup. Sgt. Kipp recalled that he drove back to the 78th Precinct stationhouse with § 87(2)(b) thus either PO Goris or PO Jwayyed drove § 87(2)(b)'s vehicle back to the 78th Precinct stationhouse. While en-route to the stationhouse § 87(2)(b) complained of pain to his arm. Once at the stationhouse, medical attention was requested for § 87(2)(b) and it was determined that he had a fracture to his arm. Sgt. Kipp did not know how § 87(2)(b) sustained the fracture.

He denied that he or any officer used any profanity during the incident. He denied that he or any officer ever stated, “Oh you’s a tough guy. You’s a fucking tough guy,” “Stop fucking moving. Stop fucking moving,” “Na fuck that. We ain’t listening to that. You ain’t no tough guy now,” or “You’re going to jail. You fucked up tonight.” Sgt. Kipp added that while he and his partners were trying to effect § 87(2)(b)’s arrest, back-up was called. He stated that PO Andre Perez and PO Nelson Rodriguez of the 81st Precinct anti-crime team responded as back-up. He could not specify their role in the incident aside from stating that they assisted in arresting § 87(2)(b). Sgt. Kipp did not recall if § 87(2)(b)’s vehicle was on or off during the incident and he did not recall if the inside of § 87(2)(b)’s vehicle was illuminated at the time he approached.

Subject Officer: PO SALWA JWAYYED

- *At the time of the incident, PO Jwayyed was § 87(2)(b) old. She is a white female who stands 5’6” tall and weighs 140 pounds with brown hair and brown eyes.*
- *On the date of the incident, PO Jwayyed worked with PO Goris and Sgt. Kipp, of Patrol Borough Brooklyn North street crime, assigned to patrol. She worked from 6:00am until 2:23pm. She was in plainclothes assigned to an unmarked vehicle.*

Memo Book: (encl. 35-36)

PO Jwayyed’s memo book stated that at 12:50am there was a vehicle stop at § 87(2)(b) and § 87(2)(b). At 1:00am PO Goris had one arrest.

CCRB Statement: (encl. 37-39)

On June 17, 2014, PO Jwayyed was interviewed at the CCRB. § 87(2)(g)

According to PO Jwayyed, she, PO Goris, and Sgt. Kipp exited their vehicle and approached § 87(2)(b)’s vehicle. PO Jwayyed approached on the driver’s side as did Sgt. Kipp. PO Jwayyed did not recall if PO Goris approached on the passenger or driver side; however, she later stated that PO Goris was interacting with the female passenger, identified by the investigation as § 87(2)(b). As PO Jwayyed approached, she heard the operator, § 87(2)(b) arguing with § 87(2)(b). PO Jwayyed heard § 87(2)(b) scream, “let me drive.” PO Jwayyed also observed § 87(2)(b) motion his body to reach under the seat of his vehicle. PO Jwayyed reached the driver’s side window, directed § 87(2)(b) to lower his window, and to keep his hands on the steering wheel. § 87(2)(b) lowered the window and placed his hands on the steering wheel as directed. However, as PO Jwayyed began to inform § 87(2)(b) the reason he was stopped, § 87(2)(b) continued to make movements reaching towards the bottom of the driver’s seat. She directed him to stop and when he did not, she told him to step out of the vehicle. PO Jwayyed did not know why he continued to reach under the seat, but expressed that she feared for her safety because she could not see what he was reaching for.

§ 87(2)(b) did not promptly exit, but then cooperated and stepped out of the vehicle on his own. Upon § 87(2)(b) stepping out of the vehicle, PO Jwayyed observed that § 87(2)(b) had “bloodshot” eyes and could smell alcohol emanating from his person. PO Jwayyed denied that she or any officer searched him, frisked him, or searched his vehicle at this time. PO Jwayyed further denied that she or any officer placed their hands in his pants at any time, made contact with his privates or undergarments and stated that these areas were never exposed. PO Jwayyed denied that there was any conversation about firearms or any conversation about searching him and his vehicle. She denied that she or any officer stated, “Oh you’s a tough guy. You’s a fucking tough guy” or used any profanity towards him.

Based on PO Jwayyed's observation, she decided to arrest § 87(2)(b) for § 87(2)(b). PO Jwayyed and Sgt. Kipp attempted to place § 87(2)(b) in handcuffs by reaching for his hands, but he resisted and refused to be handcuffed by pulling away and flailing his arms. PO Jwayyed and Sgt. Kipp grabbed § 87(2)(b) by his arms to get a hold of them because he was flailing his arms and also kicking his feet at the officers. She did not recall if he was ever pushed against his vehicle to assist in effecting his arrest. By continually grabbing § 87(2)(b)'s arms, they were able to pull his hands behind his back and place him in handcuffs. She denied that any officer pushed, bent, or lifted his arm in any way prior to or after handcuffing § 87(2)(b). They did not use any force against him to cause any injury to his arm or broke his arm. PO Jwayyed denied that she or any officer stated, "Stop fucking moving. Stop fucking moving," "You're going to jail. You fucked up tonight," or "Na fuck that. We ain't listening to that. You ain't no tough guy now."

After § 87(2)(b) was handcuffed, he was placed into their unmarked patrol vehicle. She did not recall if he complained of any injury or if he had any injury. PO Jwayyed stated that as she and Sgt. Kipp were trying to place § 87(2)(b) in handcuffs, § 87(2)(b) was yelling at him to stop resisting.

As § 87(2)(b) was being taken to the patrol vehicle, PO Goris came around the vehicle to the driver's side and removed a plastic Poland Spring bottle from under the driver's seat, which contained alcohol. She did not recall if PO Goris had any involvement in physically restraining § 87(2)(b). She did not recall if she or Sgt. Kipp walked § 87(2)(b) to the police vehicle. She did not see PO Goris search any other area of the vehicle. She denied that she or Sgt. Kipp searched the vehicle. PO Jwayyed stated that the vehicle was taken to the stationhouse. She did not recall who drove the vehicle to the stationhouse. She returned to the stationhouse after § 87(2)(b) was arrested. She did not recall if he needed medical attention or if at the stationhouse he complained of any injury specifically to his arm.

Medical Records

§ 87(2)(b)
On § 87(2)(b), at approximately § 87(2)(b), § 87(2)(b) was treated at § 87(2)(b). His medical records indicate that he presented with an abrasion to his left arm. § 87(2)(b) stated that he had left shoulder pain after hitting his shoulder against the ground. § 87(2)(b) was also diagnosed with a closed fracture to the shaft of his left humerus.

§ 87(2)(b)
On § 87(2)(b), § 87(2)(b) appeared at § 87(2)(b) for follow-up treatment. According to his medical records, § 87(2)(b) was six months post fracture to his left humeral shaft. § 87(2)(b) was noted as doing well with controlled pain.

NYPD Document(s)

Event Information (encl. 40)

The event information noted that the incident was a pick-up by 81st Precinct crime team. The crime team made an arrest and requested highway district to the 78th Precinct to conduct IDTU testing.

Medical Treatment of Prisoner Report (encl. 41)

The medical treatment of prisoner report states that § 87(2)(b) requested medical attention. He was cleared for arraignment and was directed to return to a follow-up orthopedic appointment. It noted that § 87(2)(b) had a fracture to his left humerus.

Property Voucher (encl. 42)

PO Goris prepared property voucher number § 87(2)(b) for 1 clear Poland Spring bottle containing alcohol residue.

Other Evidence:

On December 6, 2013, the undersigned investigator spoke with § 87(2)(b) at the legal department of § 87(2)(b), who stated that video footage is deleted every 21 days and there is no video footage of this incident.

On March 11, 2014, the undersigned investigator conducted field work. The undersigned investigator entered the 24 hour bodega on the intersection where the incident occurred and spoke to the two men who worked there. They did not wish to identify themselves. They did not know anything about this incident. The undersigned investigator provided the unidentified males with a brief summary of the incident, but this did not assist in their recollection. The store had surveillance cameras, but they roll over every 24 hours. There were no other stores in the area of visible surveillance cameras.

Summons/Arrest for Incident and Disposition (encl. 43-48)

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- A Notice of Claim Inquiry has been submitted and will be included in the case file upon receipt.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History (encl. 6-7)

- This is the first CCRB complaint filed by § 87(2)(b) and which § 87(2)(b) has been party to.

Subject Officer(s) CCRB History (encl. 1-5)

- PO Roman Goris has been a member of the service for six years and he has the following substantiated CCRB allegations against him:

- In CCRB case number 201116526 a frisk allegation, search allegation, and question allegation were substantiated against him. The CCRB recommended charges. The NYPD disposition is unknown at this time.
- Sgt. Kipp has been a member of the service for 12 years and has the following substantiated CCRB allegations against him:
 - In CCRB case number 200509422 a vehicle search allegation was substantiated against him. The CCRB recommended charges. The NYPD disposition was instructions.
- PO Jwayyed has been a member of service for 8 years and there are no substantiated CCRB allegations against her.

Conclusion

Identification of Subject Officer(s)

§ 87(2)(b) testified that there were four officers present from the time his vehicle was stopped to the time he was arrested. However, based on officer testimony, the CCRB determined that only three officers were present, Sgt. Kipp, PO Goris, and PO Jwayyed.

§ 87(2)(g)

§ 87(2)(b) described that there were two white male officers on the scene. He described one white male officer as being in his mid 30s and approximately 6'0" tall and 180 pounds with a mustache. He described the other white male officer as being approximately 5'9"-5'10" tall and 180-190 pounds with a slight mustache. He stated that both officers were dressed in plainclothes. As noted above, there were only three officers on the scene, one of which was a white male, PO Goris. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority- PO Roman Goris searched § 87(2)(b)

Allegation B: Abuse of Authority- PO Roman Goris searched the car in which § 87(2)(b)
was an occupant.

Allegation C: Abuse of Authority- PO Roman Goris strip-searched § 87(2)(b)

Allegation D: Abuse of Authority- Sgt. Kwame Kipp frisked § 87(2)(b)

Allegation E: Abuse of Authority- Sgt. Kwame Kipp searched § 87(2)(b)

Allegation F: Abuse of Authority- Sgt. Kwame Kipp strip-searched § 87(2)(b)

Allegation G: Abuse of Authority- Sgt. Kwame Kipp searched of the car in which § 87(2)(b)
was an occupant.

§ 87(2)(g)

§ 87(2)(b) testified that after stepping out of his vehicle, Sgt. Kipp told him that they were looking for firearms. According to § 87(2)(b) he informed the officers that they could conduct a "search" because he had nothing

to hide § 87(2)(g)

§ 87(2)(b) went on to testify that immediately after he exited his vehicle, PO Goris began to search him by going into his pockets after which PO Goris searched the vehicle through the driver's side. § 87(2)(b) testified that PO Goris then exited the vehicle, inquired as to whether § 87(2)(b) had been drinking, and then again searched his person this time going under § 87(2)(b)'s pants making contact with the outside of § 87(2)(b)'s underwear near his genitals. Subsequent to this, PO Goris conducted a second search of § 87(2)(b)'s vehicle through the driver's side door, but § 87(2)(b) did not see where he specifically searched. While this was occurring, Sgt. Kipp allegedly patted § 87(2)(b) up and down from behind and searched his pockets and then reached into his pants making contact with his buttocks and undergarments. § 87(2)(b) was subsequently directed to stand at the rear of his vehicle where he observed both PO Goris and Sgt. Kipp search through the trunk.

PO Goris and Sgt. Kipp both denied that the above occurred, which was corroborated by PO Jwayyed's CCRB testimony. PO Goris denied searching § 87(2)(b) and denied reaching into § 87(2)(b)'s pants while at the scene of arrest. PO Goris explained that the only time he searched § 87(2)(b) was at the stationhouse during which time he recovered a quantity of crack cocaine. According to PO Goris, he remained on the passenger side interacting with § 87(2)(b) and never went to the driver's side until after § 87(2)(b) was already handcuffed. PO Goris stated that while he was interacting with § 87(2)(b) he observed § 87(2)(b) throw an object under the driver's seat, which prompted PO Goris to approach the driver's side and retrieve the item after § 87(2)(b) was under arrest. PO Goris did not recall searching any other area. He stated that he only went into the vehicle for the sole purpose of removing the item, which was discovered to be a clear Poland Spring bottle containing alcohol. By Sgt. Kipp's account, as soon as § 87(2)(b) stepped out of his vehicle, he was placed under arrest. Sgt. Kipp denied that he searched § 87(2)(b) or went into § 87(2)(b)'s pants making contact with his privates. Sgt. Kipp stated that § 87(2)(b) was only searched before being placed in the patrol vehicle and at the stationhouse; however, he did not know who conducted these searches. Additionally, Sgt. Kipp denied that he searched § 87(2)(b)'s vehicle and stated that he did not see any officer do so. However, he testified that § 87(2)(b)'s vehicle was taken back to the stationhouse where an inventory search may have been conducted, but he did not observe this. Similarly, PO Jwayyed testified that as soon as § 87(2)(b) stepped out of his vehicle she arrested him for § 87(2)(b). She denied that any officer searched him, went into his pants or underpants, or searched his vehicle. PO Jwayyed corroborated PO Goris in that PO Goris did go to the driver's side of § 87(2)(b)'s vehicle and retrieved a clear Poland Spring bottle, which contained alcohol.

§ 87(2)(g)

Allegation H: Discourtesy- PO Roman Goris spoke discourteously to § 87(2)(b)

§ 87(2)(g)
§ 87(2)(b) testified that after the officers searched his vehicle, he began cursing at them at which

time PO Goris allegedly stated, “Oh you’s a tough guy. You’s a fucking tough guy” and “You’re going to jail. You fucked up tonight.” PO Goris denied making the above referenced statements and denied using any profanity during the incident, which was corroborated by Sgt. Kipp and PO Jwayyed. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation I: Abuse of Authority- PO Salwa Jwayyed searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(g) § 87(2)(b) testified that while he was standing at the rear of his vehicle, he observed PO Goris and PO Jwayyed in conversation after which PO Jwayyed searched the front passenger side of the vehicle, but did not see where she specifically searched. During PO Jwayyed’s CCRB statement, she denied that she ever searched § 87(2)(b) s vehicle. According to both Sgt. Kipp and PO Goris, they did not witness any officer on the scene search § 87(2)(b) s vehicle. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation J: Force- PO Roman Goris used physical force against § 87(2)(b)

It is undisputed that some level of force was used to handcuff § 87(2)(b) § 87(2)(g). According to § 87(2)(b) PO Goris and Sgt. Kipp grabbed him and threw him face first against the rear of his vehicle. Sgt. Kipp then grabbed his right arm and began to pull it behind § 87(2)(b) s back to handcuff him; however, § 87(2)(b) admittedly resisted by trying to pull away from him. He described that Sgt. Kipp had a hold of his arm and was trying to hold him still. § 87(2)(b) did not stop resisting. He stated that PO Goris had a hold of his left arm and was pulling it behind his back while also lifting his arm causing § 87(2)(b) pain. § 87(2)(b) testified that despite the officers’ attempts to restrain him by grabbing his arms, he continued to be combative and pull away. § 87(2)(b) alleged that during this struggle, PO Goris lifted § 87(2)(b) s arms high up behind his back, which caused him a great deal of pain and resulted in § 87(2)(b) s left arm breaking. § 87(2)(b) alleged that his left arm broke between his shoulder and elbow.

According to PO Goris, he did not have any involvement in the physical apprehension of § 87(2)(b). PO Goris stated that he was on the passenger side of the vehicle up until § 87(2)(b) was already handcuffed and being walked to the patrol vehicle. PO Goris testified that he did not observe § 87(2)(b) being handcuffed and did not see any officers use force against him during his apprehension because he was focused on § 87(2)(b) on the passenger side. § 87(2)(g) during Sgt. Kipp’s CCRB testimony, he stated that PO Goris was involved in § 87(2)(b) s physical apprehension. Sgt. Kipp stated that immediately after § 87(2)(b) stepped out of the vehicle, he was informed that he was going to be arrested. § 87(2)(b) began flailing his arms at which time Sgt. Kipp, PO Goris, and PO Jwayyed were trying to grab § 87(2)(b) and restrain him.

Although Sgt. Kipp could not specify the specific roles PO Goris and PO Jwayyed played in handcuffing § 87(2)(b) he stated that they were trying to grab his arms to rear handcuff him. Sgt. Kipp testified that he grabbed one of § 87(2)(b) s arms in an attempt to hold him still so he

§ 87(2)(g)

§ 87(2)(g)

CCRB – Confidential

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date